

Tentative Rulings for Department 501

Begin at the next page

(41)

Tentative Ruling

Re: **James Locke v. Miss Kitty's Lounge**
Superior Court Case No. 23CECG00276

Hearing Date: August 11, 2026 (Dept. 501)

Motion: By Defendant GW Building Partnership for Summary
Judgment or Summary Adjudication

Tentative Ruling:

To grant summary judgment in favor of defendant GW Building Partnership as to plaintiff's entire complaint against it. The court directs GW Building Partnership to submit to this court, within 10 days of service of the minute order, a proposed judgment consistent with the court's summary judgment order.

Explanation:

In his complaint filed on January 2, 2023, plaintiff James Locke (Plaintiff) alleges he was a patron and invitee of defendant Miss Kitty's Lounge on January 30, 2021, when he was physically attacked and beaten by "Defendants," identified as Miss Kitty's Lounge, Catherine Hill, GW Building Partnership (GW, the landlord), and Does 1 to 100. Plaintiff amended his complaint on August 18, 2023, to add Shane Leonard Smith as Doe 1, and again on December 4, 2025, to add Timothy Gilbert Lazalde as Doe 2, and Willow Syann Delgadohachee as Doe 3. Plaintiff alleges the following counts against all defendants: (1) assault; (2) battery; (3) negligence; (4) negligent hiring, supervision, training; (5) negligent inadequate security; (6) premises liability; (7) intentional infliction of emotional distress; (8) false imprisonment; and (9) negligent infliction of emotional distress. GW now moves for summary judgment, or in the alternative, summary adjudication as to each cause of action.

Law Governing Summary Judgment and Summary Adjudication

A motion for summary judgment is generally directed toward an entire action or pleading. (Code Civ. Proc., §437c, subd. (a).) By comparison "[a] party may move for summary adjudication as to one or more causes of action within an action" (Code Civ. Proc., § 437c, subd. (f)(1).) In general, "[a] motion for summary adjudication shall be granted only if it completely disposes of a cause of action" (Code Civ. Proc., § 437c, subd. (f)(1).) "A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment." (Code Civ. Proc., § 437c, subd. (f)(2).)

Code of Civil Procedure section 437c, subdivision (c) provides that summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter

of law." A defendant moving for summary judgment has the initial burden of presenting evidence that a cause of action lacks merit because the plaintiff cannot establish an element of the cause of action or there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853 (*Aguilar*).) If the defendant satisfies this initial burden, the burden shifts to the plaintiff to present evidence demonstrating there is a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar*, at p. 850.)

The trial court must "carefully scrutinize the moving party's papers and resolve all doubts regarding the existence of material, triable issues of fact in favor of the party opposing the motion." (*Connelly v. County of Fresno* (2006) 146 Cal.App.4th 29, 36.) The court must strictly construe the moving party's declarations and liberally construe the opposing party's declarations. (*Villacres v. ABM Industries Inc.* (2010) 189 Cal.App.4th 562, 575 [affirming trial court's granting of employer's summary judgment motion]; *Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839 [reversing summary judgment where evidence suggested strong possibility trier of fact would resolve issues in favor of moving defendant, but not necessarily so].) "A triable issue of fact is created when the evidence reasonably permits the trier of fact, under the applicable standard of proof, to find the purportedly contested fact in favor of the party opposing the motion." (*Loomis v. Amazon.com LLC* (2021) 63 Cal.App.5th 466, 475 [reversing summary judgment where genuine issues of material fact existed on consumer's strict products liability claim].)

Procedural History

On April 3, 2026, GW filed its pending motion, which was set for hearing on June 30, 2026. Plaintiff filed his opposition on June 10, 2026, which consisted primarily of a request for a continuance supported by counsel's three-paragraph declaration offered to authenticate two exhibits—the police report for the incident, and a rough draft of the deposition transcript of Samuel Lucido, GW's managing partner and person most knowledgeable. After GW filed its reply and objections on June 18, 2026, Plaintiff filed a certified copy of Mr. Lucido's deposition transcript on June 24, 2026, and an amended separate statement, with references to the certified deposition transcript. Thereafter the court continued the June 30, 2026, hearing date to August 11, 2026.

The court now considers GW's motion for summary judgment, made on the ground that Plaintiff cannot establish a necessary element of each cause of action against GW. Resolving all doubts in favor of Plaintiff as the party opposing the summary judgment motion, the court exercises its discretion to consider Plaintiff's late-filed evidence.

Undisputed Facts

GW presents the following undisputed facts: Plaintiff claims he was on the premises near Miss Kitty's Lounge on January 30, 2021, when he was physically attacked, resulting in serious physical injuries and other injuries. (Fact Nos. 1, 2.) Plaintiff claims he was punched in the eye by the doorman, then the doorman and others began to "beat him up," followed him outside, and continued to beat him up. (Fact Nos. 3, 4.) When GW filed the pending motion on April 3, 2026, Plaintiff, according to his discovery responses, could not identify any of the individuals involved in the altercation or any individual who was on the premises on the date of the incident. (Fact No. 5.)

GW owns the subject premises and "was the landlord to Shane Smith and Catherine Smith dba Miss Kitty's Lounge at the time of the incident." (Fact No. 6.)¹ After GW filed an unlawful detainer complaint to recover possession of the premises, the parties entered into a stipulated judgment whereby Miss Kitty's agreed to vacate the premises by February 11, 2021. GW filed the unlawful detainer action because Miss Kitty's failed to meet the rent payment obligations, not due to any known incidents of physical altercations on the premises. (Fact No. 11.) Miss Kitty's had control and possession of the premises on January 30, 2021, the date of the incident. (Fact No. 12.) GW's relationship with Miss Kitty's was that of landlord and tenant—GW had no involvement in the management and operation of Miss Kitty's Lounge. (Fact Nos. 19-22.) Before the incident occurred, GW had no knowledge of any physical altercations at Miss Kitty's Lounge. (Fact No. 23.) "GW . . . has no affiliation with or knowledge concerning any of the individuals who may have been involved in the alleged incident." (Fact No. 24.)

First Cause of Action for Assault

To establish Plaintiff's first cause of action for assault, Plaintiff must prove the following essential elements:

(1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed [he] was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm.

(*So v. Shin* (2013) 212 Cal.App.4th 652, 668–669.)

Plaintiff does not identify GW as a person who physically assaulted him. He claims he was assaulted by a doorman and "a bunch of other people" at Miss Kitty's Lounge. (Fact No. 3.) Plaintiff does not dispute that GW has no affiliation with or knowledge of the individuals involved in the assault. (Fact No. 24.) His complaint includes a boilerplate agency allegation that "each Defendant was, and now is, the agent, servant employee, joint venturer, guarantor, alter ego, and/or representative of each of the other Defendants herein." (Comp., ¶ 7.) GW meets its initial burden of production and persuasion to show Plaintiff has no evidence to establish that GW acted as the agent of any the persons who assaulted Plaintiff. GW had no role in the management or operation of Miss Kitty's Lounge and no affiliation with the assailants. (Fact Nos. 19-24.) The burden then shifts to Plaintiff to raise a triable issue of material fact as to his first cause of action for assault.

A party opposing summary judgment must present admissible evidence, including "declarations, admissions, answers to interrogatories, deposition, and matters of which judicial notice" must or may "be taken." (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 843, quoting Code Civ. Proc., § 437c, subd. (b).) Plaintiff admits Fact Numbers 19

¹ All references to "Miss Kitty's" are to Shane Smith and Catherine Smith dba Miss Kitty's Lounge.

through 24 are undisputed. Plaintiff submits no authority to oppose GW's motion apart from his request for a continuance, which the court now considers below.

Request for Continuance

While Plaintiff has requested a continuance of the summary judgment hearing in order to conduct further discovery, Plaintiff has not shown good cause to grant a continuance. If the party opposing the motion for summary judgment shows by declaration that essential evidence "may exist but cannot, for reasons stated, be presented," the court shall deny the motion, or continue it for a reasonable period, or "make any other order as may be just." (Code Civ. Proc., § 437c, subd. (h).) This statute had been interpreted to make a continuance requested by a proper and timely declaration "virtually mandated." (*Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 395.)

Even where a declaration does not meet the statutory standard, such that continuance is not mandatory, the request is still subject to the court's discretion. (*Lerma v. County of Orange* (2004) 120 Cal.App.4th 709, 716 [determination that declaration did not meet the statutory standard did not end the analysis of whether continuance should have been granted; discretionary consideration still required]; *Chavez v. 24 Hour Fitness USA, Inc.* (2015) 238 Cal.App.4th 632, 643 [even with insufficient declaration, court must determine whether there is good cause for continuance].) In most instances, the court's discretion will be exercised in favor of granting a continuance, given the harsh consequences of losing a summary judgment/adjudication motion. (*Frazer v. Seely* (2002) 95 Cal.App.4th 627, 633-634 ["[I]nterests at stake are too high to sanction the denial of a continuance without good reason."].)

Nevertheless, where there is no good cause for a continuance, the court may exercise its discretion to deny the request based on a conclusory declaration. For example, in *Combs v. Skyriver Communications, Inc.* (2008) 159 Cal.App.4th 1242, the court explained the opposition must be accompanied by an affidavit or declaration that: (1) identifies additional facts that are essential to oppose the motion; (2) gives a reason to believe such facts exist; and (3) states the reasons why additional time is needed. (*Id.* at p. 1270 [trial court did not err in denying continuance].) "The purpose of the affidavit required by section 437c, subdivision (h) is to inform the court of outstanding discovery which is necessary to resist the summary judgment motion." (*Scott v. CIBA Vision Corp.* (1995) 38 Cal.App.4th 307, 325 [finding no abuse of discretion in trial court's denial of continuance].)

GW cites *Granadino v. Wells Fargo Bank, N.A.* (2015) 236 Cal.App.4th 411, where the trial court properly exercised its discretion to deny a continuance of the hearing on the defendant's summary judgment motion based on an insufficient declaration that failed to explain:

[W]hy appellants believed the facts they sought through the depositions actually existed, why these facts were essential to oppose the summary judgment motion, and why [defendant's representative] Munoz's deposition had not been taken in the two years since the complaint was filed. The declaration simply concluded that "additional information and

testimony is still required in order to adequately respond to Defendant's Motion." This is insufficient.

(*Id.* at p. 420.)

GW points out the supporting declaration of Plaintiff's counsel identifies no facts to support the continuance request. In the declaration Plaintiff's counsel simply purports to authenticate two exhibits—the police report and the rough draft of Mr. Lucido's deposition transcript. The declaration fails to show how the discovery remaining to be completed would uncover facts related to agency or any other potential claim required to oppose GW's motion. Also, declaration fails to address why the depositions have not been taken in the three-and-a-half years since Plaintiff filed his complaint. Plaintiff identifies no new facts to hold GW liable for assault or any of his other causes of action. Therefore, the court finds there is no good cause for a continuance and exercises its discretion to deny the request.² The court finds the first cause of action for assault fails as a matter of law because Plaintiff cannot prove the essential first element of intent and there is no basis to impose vicarious liability.

Second Cause of Action for Battery

To establish Plaintiff's second cause of action for battery, Plaintiff must prove the following essential elements:

(1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching.

(*So v. Shin, supra*, 212 Cal.App.4th at p. 669.)

GW meets its initial burden to show the battery cause of action lacks merit for the same reasons at the assault claim. GW did not touch Plaintiff or cause Plaintiff to be touched. GW did not hire, employ, or exercise control over any of the persons involved in the incident, nor did it act as the agent of any involved person. Therefore, the burden shifts to Plaintiff to raise a triable issue of material fact, which Plaintiff fails to do. The court finds the second cause of action for battery fails as a matter of law because Plaintiff cannot prove the essential first element of touching and there is no basis to impose vicarious liability.

Third Cause of Action for Negligence

GW correctly summarizes the elements Plaintiff must prove to establish GW's negligence as follows:

² Where relevant, the court exercises its discretion to consider the late-filed certified deposition transcript of Mr. Lucido and the police report.

To prove negligence, the plaintiff must show: 1) that the defendant owed him a legal duty to use due care, 2) that the defendant breached that duty, and 3) that the breach was a proximate cause of plaintiff's injuries, and 4) resulting damages. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) Where a negligence claim is based upon premises liability, the plaintiff must also show the defendant had possession of the premises and the attendant right to control and manage the premises. (*Kesner v. Superior Court (Pneumo Abex, LLC)* (2016) 1 Cal.5th 1132, 1158.) The elements of negligence and premises liability are otherwise the same. (*Id.*) The existence of the first element, whether the defendant owed plaintiff a legal duty, is a question of law for the court. (*Ky. Fried Chicken of Cal. v. Superior Court (Brown)* (1997) 14 Cal.4th 814, 819.)

As first established in *Rowland v. Christian* (1968) 69 Cal.2d 108, analysis of a landowner's duty encompasses several factors, including "the foreseeability of harm to the plaintiff, the degree of certainty that the plaintiff suffered injury, the closeness of the connection between the defendant's conduct and the injury suffered, the moral blame attached to the defendant's conduct, the policy of preventing future harm, the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence of insurance for the risk involved." (*Rowland*, 69 Cal.2d at 113.) Foreseeability of harm is the chief factor in this analysis. (*Laabs v. So. Cal. Edison Co.* (2009) 175 Cal.App.4th 1260, 1272).

(Memo., pp. 5:14-6:2.)

GW contends Plaintiff's third cause of action for negligence has no merit because GW did not owe a legal duty to Plaintiff. "Duty, being a question of law, is particularly amenable to resolution by summary judgment." (*Parsons v. Crown Disposal Co.* (1997) 15 Cal.4th 456, 465.)

GW meets its initial burden of production and persuasion that it owed no duty under the facts of this case with the following analysis:

"Historically, the public policy of this state generally has precluded a landlord's liability for injuries to his tenant or his tenant's invitees from a dangerous condition which comes into existence after the tenant has taken possession. This is true even though by the exercise of reasonable diligence the landlord might have discovered the condition." (*Uccello v. Laudenslayer* (1975) 44 Cal.App.3d 504, 510.) Where a landlord has relinquished possessory interest in the property, their duty to third parties injured on the property is attenuated as compared to the tenant who has a possessory interest. (*Mata v. Mata* (2003) 105 Cal.App.4th 1121, 1131, disapproved on other grounds by *Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, 247-250.) "Thus, before liability may be thrust on a landlord for a third party's injury due to a dangerous condition on the land, the plaintiff must show that the landlord had actual knowledge of the dangerous condition in question, plus the right and ability to cure the condition.["]

(*Mata*, 105 Cal.App.4th at 1131-1132 (citing *Leakes v. Shamoun* (1986) 187 Cal.App.3d 772, 776.)

Mata v. Mata involved a bar patron who shot and killed one patron and injured two others. (*Mata*, 105 Cal.App.4th at 1124-1125, 1127.) The defendants were the landlord and the tenant, the proprietor of the bar. (*Id.*) The landlord did not inspect the property during the time he rented it to the tenant. (*Id.* at 1125.) The landlord had “heard of fights” at the bar on a couple of occasions but never talked to the tenant about security, never asked him what he was doing to stop fights, and never warned him that the lease would be cancelled if he heard about other fights. (*Id.*) The trial court granted summary judgment in the landlord's favor and the court of appeals affirmed. (*Id.* at 1125, 1127.) The court of appeals was doubtful that the landlord having “heard of fights” on a couple of occasions was sufficient to constitute actual notice, but even if it did and the fights constituted a “dangerous condition,” that condition had to do with the way the tenant managed the bar, not with the land itself, and the landlord, the court emphasized, had no role in managing the bar. (*Id.* at 1132.)

In this case, as in *Mata*, GW leased their premises to Shane Smith and Catherine Smith dba Miss Kitty's Lounge who operated a bar. GW had no role in managing the bar and had no role in hiring, training, or supervising any personnel who worked at the bar. GW had no knowledge of any prior altercations at the bar. Their tenants had sole possession and control of the premises until February 11, 2021 (the subject incident occurred on January 30, 2021), at which time the tenants had agreed to vacate the premises. Applying the *Rowland* factors, GW anticipates Plaintiff will argue the incident as alleged in the complaint was foreseeable because it is foreseeable that physical altercations will occur at a bar where people are consuming alcohol. That is not enough, as *Mata* makes clear. GW was simply the lessor of the premises with no management role and had no prior knowledge of any previous altercations. There is no connection between GW's conduct, simply leasing the premises to tenants who ran the bar, and the alleged incident, and no moral blame for such conduct, where the tenants had full control over management and operation of the bar.

The undisputed material facts establish that GW did not owe Plaintiff a duty of care. Because Plaintiff cannot establish this essential element, his claim fails as a matter of law.

(Memo., pp. 6:3-7:11, italics added.)³

³In *Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, which involved a bar proprietor's duty, the plaintiff had dismissed the landlord as a defendant at the outset of trial. On appeal, the California Supreme Court addressed some of the language and analysis of *Mata* that it found to be overbroad and potentially misleading, relating to the duties of a bar proprietor. The high court reiterated its previous conclusion about the high degree of foreseeability required to impose a duty to provide security upon a landlord:

The court finds GW meets its initial burden to show GW did not owe Plaintiff a duty of care, based on the allegations of Plaintiff's complaint and the undisputed facts. The burden then shifts to Plaintiff to raise a triable issue of material fact.

As the party opposing summary judgment, Plaintiff must present admissible evidence, including "declarations, admissions, answers to interrogatories, deposition, and matters of which judicial notice" must or may "be taken." (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 843, quoting Code Civ. Proc., § 437c, subd. (b).) In his separate statement, Plaintiff purports to dispute Fact Nos. 5, 12, 15, 16, 17, and 18.

In response to Fact No. 5 ("Plaintiff cannot identify any of the individuals involved in the altercation or any individual who was on the premises on the date of the incident"), Plaintiff responds that he subsequently identified some of the assailants (Does 1, 2, and 3) and "has now filed suit against them." (Resp. to Fact No. 5.) The subsequent identity of the alleged assailants, without evidence of a connection to GW, is immaterial to the issue of duty.

Although Plaintiff purports to dispute Fact No. 15 (Plaintiff has no evidence to show the incident was foreseeable), Fact No. 16 (Plaintiff has no evidence to show GW could control the individuals involved in the incident), and Fact No. 17 (Plaintiff has no evidence to show GW could have taken measures to prevent the incident), Plaintiff submits argument only. He offers no admissible evidence to dispute any of these facts.

Plaintiff purports to dispute Fact No. 12 (Miss Kitty's had control and possession of the premises) and Fact No. 18 (Plaintiff has no evidence to show any act or omission by GW was a substantial factor in causing the incident) by reference to Mr. Lucido's deposition at page 23, lines 19 to 24, where the cited testimony fails to raise a material dispute and provides:

Q. [By Mr. Garcia] Can you briefly describe for me what did you consider to be the common areas of the subject property back in January of 2021?

A. [By Mr. Lucido] The garbage area, the parking lot, the landscaping, the ingress and egress to the property.

Q. And for purposes of my question, they're all

[A] high degree of foreseeability is required in order to find that the scope of a landlord's duty of care includes the hiring of security guards. We further conclude that the requisite degree of foreseeability rarely, if ever, can be proven in the absence of prior similar incidents of violent crime on the landowner's premises. To hold otherwise would be to impose an unfair burden upon landlords and, in effect, would force landlords to become the insurers of public safety, contrary to well-established policy in this state. [Citations]."

(*Id.* at p. 238, citing *Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 678–679, italics original, footnotes omitted.)

The court has exercised its discretion to consider the entire late-filed certified copy of Mr. Lucido's deposition transcript. As GW notes in its reply, Mr. Lucido testified that GW maintained the physical condition of the parking lot, but provided no security, nor did it "control" the parking lot:

Q. [By Mr. Garcia] And what did that maintenance consist of on a weekly basis?

A. [By Mr. Lucido] We have a landscaping company that goes in and makes sure there's no debris in the parking lots. We inspect if asphalt is appropriate. We don't have asphalt that's worn out. We make sure that bushes are pruned back so that people walking by aren't bothered by them.

Q. What about as to security?

A. No.

Q. Did you have any security in place back in January of 2021 as to the common areas?

A. No.

Q. You didn't have any security companies on premises or that would patrol the subject property on a regular basis?

A. No.

(Lucido depo., pp. 25:21-26:12 [certified transcript filed 6/22/26].) Based on the undisputed facts, the court finds GW's duty, as the landlord, did not include the duty to provide security. (*Delgado v. Trax Bar & Grill*, *supra*, 36 Cal.4th at p. 238 [high degree of foreseeability required to find landlord's duty of care includes hiring of security guards].)

Plaintiff cites no authority to establish that GW owes a duty of care to Plaintiff based on the facts alleged in his complaint. It is undisputed that the tenant, Miss Kitty's, had sole possession and control of the premises at the time of the incident. (Fact No. 12.) Plaintiff submits no facts to establish vicarious liability. And Plaintiff cites no evidence to show GW had knowledge of any prior altercations at Miss Kitty's Lounge. In fact, Mr. Lucido's deposition testimony confirms that he had no knowledge about complaints from anyone regarding Miss Kitty's Lounge, and the first time he learned of the incident was when Plaintiff served GW with the complaint. (E.g., Lucido depo., p. 32:1-4; pp. 48:19-50:4 [certified transcript filed 6/22/26].)⁴

In sum, the court finds GW meets its initial burden to show Plaintiff cannot prove the essential element that GW owed Plaintiff a duty, which is a question of law for the

⁴ Furthermore, in light of the undisputed fact that Miss Kitty's was lawfully in possession of the premises until the date agreed upon to vacate the premises (February 11, 2021 [Fact No. 10]), and Mr. Lucido's testimony that Miss Kitty's Lounge should not have been open on the date of the incident (Lucido depo., pp. 46:21-47:15), Plaintiff fails to suggest what other action GW could have taken to prevent the incident, apart from providing security, which the landlord was not required to provide here. The police report includes notes from an officer's conversation with the owner of Miss Kitty's Lounge, who allegedly stated "that Willow [the owner's daughter] was suppose[d] to be packing up the bar for their pending eviction and that the bar should not be open." (Garcia decl., ex. 1 [police rpt., nrtv., p. 2 of 3].)

court. The burden then shifts to Plaintiff to raise a triable issue of material fact, which Plaintiff fails to do. Therefore, the court finds the third cause of action for negligence fails as a matter of law.

Fourth Cause of Action for Negligent Hiring, Supervision, and Training

The first element Plaintiff must prove to establish is fourth cause of action for negligent hiring, supervision, and training is that the defendant hired the employee. (*Jackson v. AEG Live, LLC* (2015) 233 Cal.App.4th 1156, 1187-1188.) GW meets its initial burden to show Plaintiff has no evidence to establish that GW had any role in hiring, supervising, or training any employee of Miss Kitty's. GW acted as nothing more than the landlord. (Fact Nos. 19-22.)

The court finds GW meets its burden to show Plaintiff cannot prove the essential element of hiring any employee of Miss Kitty's. The burden then shifts to Plaintiff to raise a triable issue of material fact, which Plaintiff fails to do. Therefore, the court finds the fourth cause of action for negligent hiring, supervision, and training fails as a matter of law.

Fifth Cause of Action for Negligent Inadequate Security

Plaintiff fails to supply any authority to rebut GW's statement that it is unaware of any authority establishing an independent cause of action for "negligent inadequate security," nor is the court aware of any such authority. The court finds the fifth cause of action fails for the same reasons as the third cause of action for negligence.

Sixth Cause of Action for Premises Liability

The elements of a negligence claim and a premises liability claim are the same. (*Kesner v. Superior Court (Pneumo Abex, LLC)*, *supra*, 1 Cal.5th at p. 1158.) Furthermore, the court finds the sixth cause of action fails for the same reasons as the third cause of action for negligence.

Seventh Cause of Action for Intentional Infliction of Emotional Distress

GW contends Plaintiff cannot establish intentional infliction of emotional distress because no facts exist to support a finding that GW's conduct was extreme and outrageous. (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 1001 [elements of cause of action include conduct so extreme as to exceed all bounds usually tolerated in civilized community].) The court finds GW meets its initial burden to show it engaged in no conduct directed toward Plaintiff, extreme and outrageous, or otherwise.

The burden then shifts to Plaintiff to raise a triable issue of material fact, which Plaintiff fails to do. Therefore, the court finds the seventh cause of action for intentional infliction of emotional distress fails as a matter of law.

Eighth Cause of Action for False Imprisonment

The first element of false imprisonment requires Plaintiff to prove the nonconsensual, intentional confinement of his person. (*Scofield v. Critical Air Medicine*,

Inc. (1996) 45 Cal.App.4th 990, 1001.) The eighth cause of action as to GW fails for the same reason as the others. No individuals involved in the altercation with Plaintiff were employees, contractors, or agents of GW.

Ninth Cause of Action for Negligent Infliction of Emotional Distress

"[T]here is no independent tort of negligent infliction of emotional distress." (*Potter v. Firestone Tire & Rubber Co.*, *supra*, 6 Cal.4th at p. 984.) The tort is a species of negligence, which requires the traditional elements of duty, breach of duty, causation, and damages. (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1072.) The court finds the ninth cause of action fails for the same reasons as the third cause of action for negligence.

Evidentiary Objections

The court has liberally construed Plaintiff's submitted declaration and considered the two attached exhibits without ruling on GW's evidentiary objections. The court now declines to rule on GW's objections because none are material to the disposition of Defendant's motion. (Code Civ. Proc., § 437c, subd. (q).)

Conclusion

In conclusion, the court finds GW meets its burden to show Plaintiff cannot prove at least one essential element of each of the nine causes of action alleged against GW. The burden then shifts to Plaintiff to raise a triable issue of material fact, which Plaintiff fails to do. Therefore, the court grants GW's motion for summary judgment against Plaintiff.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/10/26
(Judge's initials) (Date)